LAS VEGAS
MARATHI MANDAL
By-Laws

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REVISION HISTORY

Revision	Date	Change	Author
0.0	XX/XX/XXXX	First Adoption	Ganesh Kadam Medha Limaye Sanjay Palherkar
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ARTICLE 1. ORGANIZATION

1.1 **Name**

The name of this corporation is Las Vegas Marathi Mandal ("LVMM" or the "Corporation").

1.2 **Principal Office**

The principal office for the transaction of the business of LVMM may be established at any place or places within the State of Nevada by resolution of the Board of LVMM.

1.3 **Corporate Governance Structure**

The Corporation shall have a structure comprising of an Executive Committee (EC) (collectively, "the Board"), Advisory Council and all the paying members of LVMM for the current year ("the EC"). The Advisory Council shall be responsible for guiding and advising the Board as to set forth in Article 4 of these Bylaws. The Officers shall be responsible for strategic and day-to-day operations of the Corporation for the duration of their term to support the Corporation's strategic initiatives as set forth in these Bylaws.

1.3.1 The EC shall consist of all the elected nine (9) officers.

- President
- Vice President
- Treasurer
- Secretary
- Cultural Secretary
- Food Manager
- Technical Manager
- Marathi Shala Principal
- Youth Leader

1.3.2 All Board members shall work strictly on a voluntary basis. No remuneration in any form shall be given to any Board member.

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ARTICLE 2. PURPOSE

In the future, once we are Section 501(c)(3) compliant, the purposes for which the Corporation is organized are exclusively charitable and educational within the meaning of Section 501(c)(3) of the Internal Revenue Code or the corresponding sections of any future federal tax code. In furtherance of these purposes, the Corporation will perform any and all acts to accomplish any of the following:

The Las Vegas Marathi Mandal shall be as and is a non-profit Corporation under the laws of the State of Nevada. The Corporation is organized exclusively for charitable

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Revenue Code, or the corresponding sections of any future federal tax code. The Corporation is established to:

a. Promote the culture and traditions of the Indian state of Maharashtra by bringing together the Marathi community in Las Vegas, Nevada by celebrating Marathi festivals, cultural events such as music, dance & theater. These activities could be in coordination with Brihan Maharashtra Mandal of North America;
b. Promote and preserve the language of Maharashtra ("Marathi").
c. To facilitate instilling Marathi culture, tradition and language into the younger generation.
d. To integrate Maharashtrian community with the Nevada culture and people and to communicate with other Indian organizations, in a constructive way.
e. To help members of the Maharashtrian Community;
f. Contribute to local social causes to promote harmony and peace, and
g. To exercise all powers provided in the Nevada Business Organization Code in furtherance of the above stated purposes.

ARTICLE 3. LVMM MEMBERSHIP

3.1 **Membership Eligibility**

3.1.1 The Officers shall decide the eligibility criteria based on article 2 and fees for membership from time to time as appropriate.

3.1.2 Any individual who has interest in supporting the purpose, mission, and vision of LVMM is eligible to become a member by paying the annual membership.

3.1.3 LVMM does not recognize any type of membership other than the membership categories as set forth in Section 3.3. below.

3.1.4 No member of the EC is exempt from the annual membership fee.

3.2 **Membership Rules and Regulations**

3.2.1 Annual membership dues shall be set by considering factors such as inflation, past experiences, planned reserves, and planned events for the year. Such dues may vary from year to year.

3.2.2 Membership shall cover the period from January 1 to December 31 and the membership dues should be published on an annual basis.

3.2.3 Any change in the annual dues structure is allowed at the discretion of the Officers for the calendar year.

3.2.4 Membership of LVMM may not be assigned, alienated, pledged, or otherwise transferred. LVMM members are allowed to bring guests to all the events by paying the guest fees set for each event. A guest cannot be used as a replacement for an absent member.

3.2.5 Membership dues or guest fees are not refundable under any circumstances.

3.2.6 The Officers shall decide the Membership benefits as they may vary based on the type of event / program. Membership benefits, as decided by the Officers, for

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cultural events organized by LVMM, shall include free entrance to the events or discounts on event charges.

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3.2.7 The Officers shall communicate member and non-member fees for all upcoming events.

3.3 **Membership Categories**

LVMM Membership are for a period of ONE year, from January 1- December 31. The membership fee would be due January 1. Membership is non-refundable and non-transferable. We recommend to purchase at the beginning of the term to earn all membership benefits. The EC may change the annual membership dues for the categories listed below for each calendar year:

3.3.1 LVMM Membership Fees –
$35 per Adult (11 years and above)
$20 per Child 4 to 10 years
Free Membership for Children 3 and under

ARTICLE 4. ADVISORY COUNCIL

4.1 **Role**

The Advisory Council shall be appointed only in an advisory capacity and will not have voting rights at the EC meetings and cannot perform as an Officer of EC but will:

4.1.1 Render guidance and advice to the Officers and any ad hoc committee in general matters of finances, programs, donations, elections etc. as needed.

4.1.2 Provide oversight and guidance for long term and strategic planning for the Corporation.

4.1.3 Monitor the operations of the Corporation to verify that they are keeping with the long-term objectives and make recommendations to the Officers to align the operations to long term objectives as needed.

4.2 **Selection Process**

4.2.1 The EC will nominate to the Advisory Council, minimum 3 members of Las Vegas Marathi Mandal, who are in good standing orders of the rules and regulations of LVMM, who have been a resident of Nevada for minimum of 2 terms or longer (not necessarily consecutive) and know the essentials for current and future functioning of LVMM. The tenure of each member should be 2 terms, unless the EC determines otherwise, during or after the completion of the Tenure of any member.

4.2.2 Each President completing his/her term who is no longer eligible for re-election and not a member of the Board will be appointed as an Advisor.

4.2.3 Two of the advisors will be appointed by the newly formed Board of Officers and the third advisor will be the retiring president from the previous Executive Committee.

4.2.4 Mid-term vacancies among the Advisors shall be filled by the Officers from the EC to serve until the expiration of the term for which the vacancy occurred.

4.2.5 In addition to past Presidents serving as Advisors following the initial appointment, it is recommended to the EC that the Advisors will be selected from senior members

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of the LVMM.

4.2.6 All Advisory Council members are subject to membership fees.

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ARTICLE 5. Executive Committee

5.1 **Role**

The Officers of the EC shall be responsible for the strategic and day-to-day operations of the Corporation for the duration of their term. The Officers shall perform all duties imposed on them collectively or individually by law, by the Certificate of Formation of LVMM, and by these Bylaws. Such duties include:

5.1.1 To appoint and remove, employ, and discharge any officer of the EC by a simple majority vote by officers.

5.1.2 To prescribe, except as otherwise provided in these Bylaws, the duties and authority of all officers, agents and volunteers working for LVMM.

5.1.3 To meet at such times and places as required by these Bylaws.

5.1.4 To form one or more ad hoc committees including a Finance Committee, a Cultural Event Committee, an Election Committee and such other committees as required from time to time as further discussed in Article 7.

5.1.5 The Officers in addition to these general powers conferred by this section are empowered to make and change rules and regulations consistent with these Bylaws for the management and conduct of the affairs of the Corporation.

5.1.6 Notwithstanding the powers granted in this Section, Officers may not:

5.1.6.1 approve of any action unilaterally which, under these Bylaws, requires the approval or majority vote of the EC

5.1.6.2 amend or Repeal Bylaws or adopt new Bylaws.

5.2 **Selection Process**

5.2.1 There are three initial Officers as set forth in the Certificate of Formation filed with the State of Nevada on January 04, 2024.

5.2.2 Bi-Annual voting for EC. LVMM members shall either nominate themselves or other members for EC positions in July of the voting year. Each Officer and the associated officer roles (i.e., Officer serving as a President, Officer serving as a Treasurer etc.) will be listed for the election purpose. Campaigning will start from Ganesh Chaturthi program (Usually September month). Elections will be conducted post-Annual EC Meeting (AGM) and subsequently results shall be announced. A minimum of five Officers will be elected by the EC by way of a simple majority vote.

5.2.3 In the event of two or more nominations for the same EC position, there will be a vote. Voting of each EC Member would be conducted by a simple majority following a secret ballot at the annual general body meeting held in conjunction with Diwali Event.

5.2.4 At least 25% of the members should be present to constitute a quorum for the annual general body meeting for election purposes.

5.2.5 The newly elected EC will start its tenure from January 1st of the following year.

5.2.6 LVMM shall hold an election every two years to select the EC. Officers shall serve terms of two years with terms following the fiscal year as described below. The fiscal year for LVMM shall be from January 1st to December 31st.

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5.2.7 Mid-term vacancies shall be filled by appointments by the remaining Officers from the EC. Such appointed Officers shall serve until the expiration of the term for which the vacancy occurred.

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5.2.8 Officers may serve up to two (2) terms but not in the same officer position. After serving two terms, an Officer must vacate his/her position for at least 2 years before seeking reelection to any officer position.

5.2.9 Any Officer may be removed, with or without cause by the majority of Officers subject to the approval of the EC at the next general event.

ARTICLE 6. OFFICERS

6.1 **Role**

The Officers shall consist of the President, Vice President, Secretary, Treasurer, Technical Manager, Cultural Secretary, Food Manager, Marathi Shala Principal and Youth Leader. Such officers may hold more than one office up to two positions, except that neither the Secretary nor the Treasurer may serve as the President or Vice President. Each Officers has only one voting rights irrespective of multiple positions.

6.1.1 The President shall:

6.1.1.1 Lead and maintain the vision of LVMM including its objectives and purposes;

6.1.1.2 Be the principal executive officer of this organization and shall in general supervise, conduct, and control all the business and affairs of the organization, officers, and members;

6.1.1.3 Provide guidance to the operations of the Organization;

6.1.1.4 Operate within the Bylaws of the organization;

6.1.1.5 Make Decisions in cooperation with the EC. Decisions in case of emergencies can be made by the President;

6.1.1.6 Allocate the responsibilities among the members carry out the routine activities of the Organization in a streamlined manner;

6.1.1.7 Preside over the EC meetings;

6.1.1.8 Report on the general progress of the Organization to the EC;

6.1.1.9 Represent the Organization and participate on behalf of the Organization at the meetings of other Organizations that may have objectives similar to those of the Organization;

6.1.1.10 Be a co-signer at the Bank;

6.1.1.11 Act as a liaison between the Officers, the Board and members;

6.1.2 The Vice President shall:

6.1.2.1 Support the EC committee in all the activities;

6.1.2.2 Be a co-signer with the President and be responsible for all financial accounts of the Organization;

6.1.2.3 Be responsible for the membership drive;

6.1.2.4 Maintain the integrity and security of the information database such as

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member information;

6.1.2.5 In absence of the President take over the responsibilities mentioned in the Presidents role;

6.1.3 The Secretary shall:

6.1.3.1 Record, maintain and disseminate minutes of meetings of the EC;

6.1.3.2 Record and document minutes of the EC meetings;

6.1.3.3 Be custodian of all records of the Organization;

6.1.3.4 Maintain a register of the post-office address, phone number, email address of each Executive member which shall be furnished to the Secretary by such member.

6.1.3.5 Sign with the President, or any other officer thereunto authorized by the the EC, any contracts the EC has authorized to be executed, according to the requirements of the form of the instrument, except when a different mode of execution is expressly prescribed by the EC or these Bylaws;

6.1.3.6 Have authority to certify the By-Laws, resolutions of the EC and committees thereof, and other documents of the Organization as true and correct copies thereof;

6.1.3.7 See that all notices are duly given in accordance with the provisions of the By-Laws or as required by law;

6.1.3.8 Maintain all the correspondence of the Organization in good order and conduct the business of the Organization. Maintain and store all pertinent records of Organization in the manner set forth;

6.1.3.9 Is responsible to respond to member queries and forward such queries to appropriate authority for action/response or resolution;

6.1.3.10 Supervise the working of the committees dealing with administration and communication;

6.1.3.11 Notify all members of the EC the particulars of all meetings and gatherings of the Organization and provide them with the agenda and programs a week in advance of the meeting;

6.1.3.12 Notify all Members of the particulars of the Semiannual EC meeting/s (location, date, time) one month in advance. Provide minutes of the previous EC meeting, annual report, treasurer's final report, documenting Organizational activities and progress, agenda, election of officers and special resolutions, if any; and

6.1.3.13 Perform all duties incident to the office of Secretary and such other duties as from time to time may be assigned to him or her by the EC. Support the other Officers and members of the EC in their activities;

6.1.3.14 In the event of the absence of the President and Vice President, the Secretary shall carry out the duties of the President;

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6.1.4 The Treasurer shall:

6.1.4.1 Have custody of all funds of LVMM; receive and give receipts for monies due and payable to LVMM from any source whatsoever, and deposit all such monies in the name of LVMM in such banks, trust companies, or other depositories as shall be selected by the Officers;

6.1.4.2 The treasurer shall be the principal accounting and financial officer of the Organization;

6.1.4.3 He or She shall have charge of and be responsible for the maintenance of adequate books of account for the Organization;

6.1.4.4 Have charge and custody of all funds of the Organization;

6.1.4.5 Keep an account of the finances of the Organization, prepare the financial statements consistent with generally accepted accounting principles, if needed have them audited for that Fiscal year;

6.1.4.6 Issue receipts for donations received from members, entities or well-wishers;

6.1.4.7 Ensure that the financial guidelines prepared in consultation with professional accountants are properly followed in all the financial matters relating to the Organization's activities;

6.1.4.8 Deposit money, drafts, checks in the name of and to the credit of Organization, in the banks designated by the EC;

6.1.4.9 Keep accurate record of membership payments and other payments due to the Organization;

6.1.4.10 Disburse Organization funds and issue checks, drafts in the name of Organization, as prescribed by the EC with designated signatures;

6.1.4.11 Submit a monthly report to the EC in advance of the monthly meeting;

6.1.4.12 In consultation with the President, prepare annual budget and event budget and submit to the EC;

6.1.4.13 Perform all the duties incidental to the office of treasurer and such other duties as from time to time may be assigned to him or her by the EC;

6.1.4.14 Support the other Officers and members of the EC in their activities;

6.1.4.15 Provide approved financial statements and all supporting documents to appointed Certified Public Accountant for filing the Tax Returns. Ensure that the Tax Return is filled by the due date prescribed by IRS and/or any State Authorities;

6.1.4.16 Regulatory Reporting—IRS. Each year, the Treasurer must file tax returns using Form 990/990-EZ/990-N. Such forms must be filed in accordance to applicable IRS rules and regulations;

6.1.4.17 Regulatory Reporting—Nevada. For Periodic reporting, the Treasurer must file Form 802 at least once every four years. First time filing should be done anytime during first year.

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6.1.5 The Technical Manager shall:

6.1.5.1 The Technical Manager is in-charge of all digital assets of the Organization;

6.1.5.2 Digital Assets include but are not limited to websites, WhatsApp groups, YouTube channels, twitter, Instagram, Facebook groups etc;

6.1.5.3 It is the responsibility of the webmaster to administer and manage all digital assets & ensure that those are used consistent with the objectives of the Organization & in accordance with the purpose stated;

6.1.5.4 The webmaster is also in-charge of the data collected and stored by the Organization; thus, the webmaster has to ensure that proper tools and process are in place to protect the privacy of the members data in accordance with the legal laws;

6.1.5.5 The webmaster controls the flow of information between the Organization and the members; thus, the webmaster shall be responsible for ensuring timely communication via various and appropriate channels about events, meetings, and any other communication items requested by the EC;

6.1.5.6 The Webmaster is responsible to develop and maintain brand integrity across all platforms;

6.1.5.7 The webmaster is also responsible for creating and updating content, implementing security protocols, creating backups, sorting out software issues;

6.1.5.8 The Webmaster is responsible for configuring appropriate access of users to Organization's digital Assets;

6.1.5.9 The Webmaster shall represent the Organization in all interactions with other software and hardware providers;

6.1.5.10 All of the things have to be approved by the EC.

6.1.6 The Cultural Manager shall:

6.1.6.1 Cultural Manager is in charge of all Cultural events organized;

6.1.6.2 Providing a yearly Calendar for events;

6.1.6.3 Finding a place for the events;

6.1.6.4 Estimating cost of organizing the event;

6.1.6.5 Decoration need and purchasing the decorations within the budget for the events;

6.1.6.6 Volunteers needed for the events;

6.1.6.7 Finding sponsors for events;

6.1.6.8 All of the things above have to be approved by the EC.

6.1.7 The Food Manager shall:

6.1.7.1 Organizing Food for all the events;

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6.1.7.2 Estimating Food/utensils and other costs;
6.1.7.3 Spending as per the budget provided for the event;
6.1.7.4 Finding sponsors for events;
6.1.7.5 Finding Volunteers;
6.1.7.6 Taking care of food safety and food allergies.
6.1.7.7 First aid kits in case of emergency;
6.1.7.8 All of the things above have to be approved by the EC.

6.1.8 The Marathi Shala Principal shall:
6.1.8.1 Create objectives and goals for the Shala;
6.1.8.2 Find teachers;
6.1.8.3 Find students;
6.1.8.4 Conduct Classes;
6.1.8.5 Develop learning plans, Exams and events for the Kids;
6.1.8.6 All of the things above have to be approved by the EC.

6.1.9 The Youth Leader shall:
6.1.9.1 Have activities and charity causes that would encourage youth to join the Marathi cause.
6.1.9.2 All of the things above have to be approved by the EC.

ARTICLE 7. MEETINGS

7.1 **General Body Meetings**

7.1.1 A general body meeting is defined as a meeting where all the LVMM paid members are invited with a meeting notice (purpose/date/time/place) at least two weeks but not more than two months in advance. A general body meeting can coincide with any LVMM event.

7.1.2 The Officers shall hold at least one Annual Meeting of the General Body at a time and place fixed to maximize members participation for the purpose of holding elections, summarizing the past year performance and providing the Income Statement and Balance Sheet of LVMM. They may hold another meeting as necessary.

7.1.3 Apart from electing EC as needed, the General Body can propose and vote on any other topic related to the workings of LVMM at the Regular or Annual meeting. Decisions of the General Body will be based on a simple majority and shall be binding on the Officers if a quorum is present.

7.1.4 A quorum of a General Body meeting shall be at least one-tenth (or 10%) of the membership in good standing. The General Body may remove any member(s) from meetings by a majority vote if it feels that such member(s) is/are disruptive toward the purpose of the meeting.

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7.2 **EC Meetings**

7.2.1 EC Meetings shall be held at least once per quarter.

7.2.2 The President/VP can call for a meeting at any time with at least 15 days prior written notice. Any convenient method (virtual/phone/physical place) and date/time can be chosen by majority consent.

7.2.3 A quorum of a Board meeting shall be a minimum of three (3) Officers present.

7.2.4 The transactions of any Board meetings, however called, shall be valid if a quorum is present. Any resolution or decision taken by the majority members of the Directors shall be binding.

7.2.5 Directors shall meet with Advisory Council twice a year and invite them for every board meeting.

ARTICLE 8. COMMITTEES

8.1 The Officers may appoint one or more committees, including a Finance Committee, Technical Committee, Food Committee, Cultural Event Committee, Youth Committee, an Election Committee and such other committees as required from time to time.

8.2 Each committee shall have the powers and duties as delegated to it by the Officers and shall be governed in accordance with such rules and procedures as the Officers may prescribe.

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8.3 Any committee so appointed shall be dissolved automatically after the event has taken place or until otherwise directed by the Officers.

8.4 The committee shall report to the President as many times as requested.

ARTICLE 9. GENERAL AND RESERVE FUNDS

9.1 All financial commitments, verbal or in writing, will be approved by the President and Treasurer. Commitments for $500 or above shall be pre-approved by the EC. The EC will determine the reasonable and maximum amount for a transaction that can be managed through cash. All other transactions shall be managed through bank checks signed by Treasurer.

9.2 The Officers can decide to create reserves for a specific amount for a specific purpose only if approved by a majority vote by the EC [if a quorum is present]. Once the specific purpose is served, the excess reserve funds shall be transferred to general funds.

9.3 Each year a good faith effort must be made to set aside 20% of membership revenues for unforeseen emergency / rainy day circumstances.

9.4 The fund amounts as described in this section may be invested only in zero risk financial instruments.

9.5 The properties and assets of the LVMM are irrevocably dedicated to and for non-profit purposes only. No part of the earnings, properties, or assets of the LVMM shall be given to any member, director or officer.

ARTICLE 10. LAS VEGAS MARATHI SHALA

10.1 Shala – An Autonomous Initiative of LVMM

10.1.1 Las Vegas Marathi Shala (Shala) shall be a self-funded autonomous organization under LVMM managed by an independent group of volunteers called the Shala Board.

10.1.2 Shala will have its own Bylaws designed for its management on a “Sunday School” concept.

10.1.3 Shala Bylaws will adhere to LVMM Bylaws and shall complement its mission and objectives.

10.1.4 The Principal of Shala shall meet with LVMM’s Board at least once a year in the month of September to provide updates on:
a) financial matters including income statement and balance sheet, b) operational matters, c) specific matters requested by LVMM Officers d) other relevant matters related to the progress of the Marathi Shala and issues impacting the Marathi Shala and its community.

10.1.5 The LVMM EC Committee can request any relevant information at any time from the Shala Board.

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Shala Board members, Officers, teachers, and parents shall be required to be members of LVMM.

10.1.6 LVMM, as an umbrella organization, will provide for the liability insurance requirements of Shala.

10.1.7 The Officers shall not interfere with Shala management unless any activity of Shala is deemed not in accordance with the mission/purpose of LVMM and these Bylaws.

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ARTICLE 11. CONFLICT OF INTEREST

11.1 The purpose of the conflict-of-interest policy is to protect this tax-exempt organization (Las Vegas Marathi Mandal, also noted as "LVMM") interest when it is contemplating entering a transaction or arrangement that might benefit the private interest of a member of the EC or the LVMM. This policy is intended to supplement but not replace any applicable state and federal laws governing conflict of interest applicable to nonprofit and charitable organizations. The EC shall be vigilant on any actual or perceived conflict of interest and will investigate and take appropriate action on any situation of actual or perceived conflict of interest brought to its attention. All members of the LVMM (including EC) should declare to the EC any competing professional or personal interests that may be pertinent to their activities within the LVMM. If a conflict of interest does arise, the individual must inform the EC immediately as the matter becomes apparent and should take one or more of the following actions:

- Declare the conflict of interest before the EC and/or the general membership of the Association if applicable.
- Abstain from the activity in question.
- Pass the role to a colleague.
- Stand down/withdraw from the activity.
- Recommend to the EC to cancel the activity.

Failure to do so, may lead to the imposition of sanctions, including a ban on attendance/participation at specific events or activities of the LVMM and ultimately termination of their membership of the LVMM.

Upon a potential conflict of interest surfacing within the LVMM, the EC shall engage in due diligence to resolve the conflict of interest, in accordance with existing state and/or federal laws.

ARTICLE 12. INDEMNIFICATION

12.1 The LVMM will indemnify its 'agents', as described by law, including officers, members and volunteers against all expenses, judgments, fines, settlements to the fullest extent permitted by law.

ARTICLE 13. DISSOLUTION OF THE LVMM

13.1 Dissolution of the LVMM, if needed, will rely on operation of the Nevada state law for dissolution of non-profit organizations, in conjunction with the appropriate IRS laws, policies, or guidelines.

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ARTICLE 14. AMENDMENT

14.1 Amendment to the Certificate of Formation

14.1.1 The Certificate of Formation may be amended only by resolution duly adopted by a three fourth (3/4) majority vote of the Officers and the LVMM current members.

14.2 Amendment to the Bylaws

The Bylaws of the Corporation may be made, altered, amended or revealed according to the following procedure:

14.2.1 Any EC member in good standing, including members of the EC, can propose an amendment to these Bylaws. The Board shall act as a review committee and review the proposal for amendments. The review committee can take the matter to the EC after suggestions or changes as deemed necessary. Within 60 days after such submission, the Review Committee shall accept the submission, reject or of suggest modifications and will reply to the EC Member.

14.2.2 The Bylaws may only be amended or repealed, and new Bylaws adopted by a majority vote of all Officers, and with the approval of a majority of the quorum of the EC.

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15. 1 ETHICS AND CONDUCT

15.1.1 LVMM culture will encourage open communication, operating with the highest standard for compliance with applicable laws, regulations, and policies for a not-for- profit Corporation.

15.1.2 The Board of LVMM will abide by these Bylaws and will do business only by lawful and ethical means.

15.1.3 The Board members shall neither accept nor offer any gifts in any form from/to any person(s) or companies to achieve the objectives of LVMM or for services rendered to/ on behalf of LVMM.

The foregoing by-laws were adopted by the office bearers of:

Las Vegas Marathi Mandal

On XXth Day of January 2024

President

_____

Secretary

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Treasurer

_____

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